Confidentiality

Can I share this?

Emergency Department
University Hospitals
Birmingham

You may share if ONE of these applies

1 Consent

Implied for the team caring for the patient. Ask explicitly for anyone else: police, solicitors, employers.

2 Lacks capacity

Share what is in their best interests, for example telling family how they are.

3 Required by law

See the red box below. Share only what the law asks for.

4 Public interest

To protect others from death or serious harm, or to prevent or detect serious crime. Ask a senior.

None of these? Do not share.

You must share: the law says so

> **New from 30 Sept 2026:** information relevant to a **child's** safety or welfare must be shared with social care or police through the safeguarding team. Consent is not needed. (Children Act 2004, s16LA)

- **FGM in a girl under 18** (she tells you or you see it): **you** call the police on 101
- **Terrorism:** tell the police anything that may help prevent it
- **Court order or coroner:** share only what is required
- **Notifiable disease:** tell UKHSA on suspicion. Urgent ones by phone within 24 hours
- **Police identifying a driver:** give identity only, no clinical details

Common situations

Gunshot or knife assault

Usually tell the police quickly, without the patient's name at first. Giving their identity needs consent or a public interest reason. Not usually needed for accidental or self-inflicted knife wounds.

Police ask about a patient

No general duty to answer. You need consent, a legal requirement, a court order or a public interest reason. Involve the consultant in charge.

Relative on the phone

Do not confirm the patient is here without their consent. You can always listen to relatives' concerns.

Worried about a child

Share through the safeguarding team. Usually tell the family, unless that puts the child at risk. Think about children at home of adult patients too.

Adult discloses domestic abuse

If they have capacity and refuse a referral, usually respect it. Share if others, such as children, are at risk of serious harm.

Unfit to drive, won't stop

The patient must tell DVLA. If they keep driving, you may tell DVLA without consent. Tell them first unless unsafe.

If you share

1. Share the **minimum** needed
2. Check who you are talking to
3. **Tell the patient**, unless unsafe or it would defeat the purpose
4. **Document:** what, to whom, when, the legal basis and why

Not sure? Ask first

You must be able to justify your decision. You do not have to make it alone.

Consultant in charge · **Safeguarding team** · **Caldicott Guardian** · **Defence organisation**

Scan for the full guide and sources

17 common ED situations, what the law and GMC say about each, and how to share safely.
wmebemconfidentiality.netlify.app

Based on GMC *Confidentiality: good practice in handling patient information* (2017, updated 2024) and its guidance on gunshot and knife wounds and on DVLA; Children Act 2004 s16LA and DfE statutory guidance (2026); FGM Act 2003 s5B; Health Protection (Notification) Regulations 2010; Terrorism Act 2000 s38B; Road Traffic Act 1988 s172. Written for England. A summary, not legal advice: follow Trust policy. Developed by Dr Jake Turner.

Review by: October 2027